

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

Comité de filtrage/Screening Panel

AFFAIRE GUSTAFSSON c. SUÈDE

(Demande en révision n° 2)

CASE OF GUSTAFSSON v. SWEDEN

(Revision request (no. 2))

(18/1995/524/610)

DECISION

(Recevabilité/Admissibility)

STRASBOURG

11 septembre/September 1998

In the case of Gustafsson v. Sweden (request for revision of the judgments of 25 April 1996 and 30 July 1998)[1],

The Screening Panel of the European Court of Human Rights, constituted in accordance with Rule 60 § 3 and, *mutatis mutandis*, Rule 26 of Rules of Court B[2],

Having deliberated in private at Strasbourg on 27 August 1998, and composed of the following judges:

Mr A.N. LOIZOU, *Chairman*,
Mrs E. PALM,
Mr J.M. MORENILLA,

and also of Mr H. PETZOLD, *Registrar*,

Having regard to the request for revision of the judgment delivered on 25 April 1996 in the case of Gustafsson v. Sweden (*Reports of Judgments and Decisions* 1996-II – "the original judgment") and of the judgment of 30 July 1998 dismissing an earlier request by the applicant for revision of the original judgment (*Reports* 1998-V) lodged with the Court by the applicant under Rule 60 of Rules of Court B on 6 August 1998;

Recalling that, under Article 52 of the Convention, the Court's judgments are final;

Having regard to Rule 60 §§ 1 and 3 of Rules of Court B and to the observations received from the applicant on 6 August 1998, as well as his request to be given an opportunity to submit further observations in support of his revision request;

Noting that the present request relates essentially to facts which the applicant had also pleaded during the main proceedings leading to the Court's original judgment;

Observing in addition that the request concerns a ground for revision – namely that, in the applicant's view, it was not possible for an employer to negotiate the contents of a substitute agreement with a union – which the applicant had previously submitted in the proceedings relating to his first revision request but which he had subsequently withdrawn at the admissibility stage of those proceedings (see paragraph 8 of the judgment of 30 July 1998);

Notes by the Registrar

1. The case is numbered 18/1995/524/610. The first number is the case's position on the list of cases referred to the Court in the relevant year (second number). The last two numbers indicate the case's position on the list of cases referred to the Court since its creation and on the list of the corresponding originating applications to the Commission.

2. Rules of Court B, which came into force on 2 October 1994, apply to all cases concerning States bound by Protocol No. 9.

Whereas the Panel in any event considers that the facts adduced in support of the present request are not of the kind referred to in Rule 60 § 1 of Rules of Court B (cf. the Pardo v. France judgment of 10 July 1996 (*revision – admissibility*), *Reports* 1996-III, pp. 869-70, § 21);

Unanimously

1. *Rejects* the applicant's request to be given an opportunity to submit further observations in support of his revision request;

2. *Declares* the present revision request inadmissible; and

3. *Dismisses* it.

Done in English and in French, and notified in writing on 11 September 1998.

Signed: Andreas Nicolas LOIZOU
Chairman

Signed: Herbert PETZOLD
Registrar